

24STLC02506 24STLC02506

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-09-14

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Case Number: 24STLC02506 Hearing Date: September 14, 2026 Dept: 26

TENTATIVE RULING:

The Court sets an Order to Show

Cause Why the Petitions Should Not Be Dismissed for Failure to Show Proper Service, on October 5, 2026 at 8:30 a.m.

A party's failure to appear may result in dismissal of that party's Petition.

Analysis:

On April 5, 2024, Plaintiff Mark Tunne ("Plaintiff") filed the instant action against Defendants Brandon Blake and Blake & Wang, P.A. ("Defendants"). The Court granted Defendants' Motion to Compel Arbitration on September 30, 2024. (Minute Order, 09/30/24.) On April 3, 2026, both parties appeared at a status conference and represented to the Court that the arbitration was completed and a final arbitrator's award issued. (Minute Order, 04/03/2026.) On the same day, Plaintiff filed a Petition to Correct and Vacate Arbitration Award. On April 30, 2026, Defendants filed a Petition to Confirm Arbitration Award.

The Petition to Correct or Vacate came for hearing on July 6, 2026, at which time the Court found it did not meet the statutory service requirements. (Minute Order, 07/06/26.) In the same Order, the Court reviewed the Petition to Confirm Arbitration Award and found that it too had not been properly served, in that it did not include a proof of service of the Notice of Hearing. (Ibid.) The Court set both Petitions to be heard on the same day, August 3, 2026, and ordered the parties to each file proof of service of the moving papers and hearing date. (Ibid.)

Defendants were ordered to give notice of the ruling continuing the hearing

date. (Ibid.)

On July 14, 2026, Defendants filed a Notice of Ruling and a Notice of Petition to Confirm Arbitration Award. Problematically, however, the Notices were served on Plaintiff by only electronic mail, which is not a valid means of service on a self-represented litigant, absent express consent. (Minute Order, 08/03/26.) At the August 3, 2026 hearing, neither party appeared. The Court again continued the hearing to September 14, 2026, allow for proper proof of service. (Id.) Defendants were ordered to give notice. (Id.)

To date, however, no proof of service or other additional papers have been filed by either party.

The Court sets an Order to Show Cause Why the Petitions Should Not Be Dismissed for Failure to Show Proper Service, on the date indicated below. The parties are encouraged to appear and address the Court on this tentative at the hearing on the Petitions, which may negate the need for the Show Cause hearing.

Conclusion

The Court sets an Order to Show Cause Why the Petitions Should Not Be Dismissed for Failure to Show Proper Service, on October 5, 2026 at 8:30 a.m. A party's failure to appear may result in dismissal of that party's Petition.

Judicial Assistant to give notice.